

## 24STCV28646 24STCV28646

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-27

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Case Number: 24STCV28646 Hearing Date: July 27, 2026 Dept: 512

HEARING DATE: Mon., July 27, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Allstate

Northbrook Indemnity Co., et al. COMP.

FILED: 10-31-24

v. Spriggs, et al.

CASE NUMBER: 24STCV28646

NOTICE: OK

PROCEEDINGS: MOTION

TO COMPEL COMPLIANCE WITH SUBPOENA FOR PRODUCTION OF CONSUMER RECORDS

MOVING PARTY: Plaintiffs

Allstate Northbrook Indemnity Company and Allstate Insurance Company

RESP. PARTY: None

MOTION TO COMPEL SUBPOENA COMPLIANCE

(CCP § 1987.1.)

TENTATIVE RULING:

Plaintiffs Allstate

Northbrook Indemnity Company and Allstate Insurance Company's unopposed Motion

to Enforce Subpoena for Consumer Records to Parris Law Firm is GRANTED with the exclusion of materials from production based on the attorney work-product or attorney-client privilege. Nothing in this order prevents the parties from entering into a stipulated protective order pertaining to the documents requested.

Moving parties are ordered  
to give notice.

SERVICE:

☒ Proof of  
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address  
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court  
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None  
filed as of July 22, 2026 ☐ Late ☒  
None

REPLY: None  
filed as of July 22, 2026 ☐  
Late ☒ None

ANALYSIS:

I.  
Background

On October 31, 2024, Plaintiffs  
Allstate Northbrook Indemnity Company and Allstate Insurance Company  
("Plaintiffs") filed the instant action against Defendants Scott Spriggs and  
Kinkle Rodiger & Spriggs P.C. ("KRS PC") ("Defendants") and Does 1-50, alleging  
causes of action for Legal Malpractice and Breach of Fiduciary Duty. (Compl.,  
p.1.) The underlying action pertains to Defendants' inadequate legal  
representation of Plaintiffs' insureds in a separate matter. (Compl., pp.

1-16.)

On February 5, 2025, Defendants filed an Answer.

On March 10, 2026, an Informal Discovery Conference (“IDC”) was held. (3/10/26 Order.)

On May 27, 2026, an IDC was held. (5/27/26 Order.)

On May 27, 2026, Plaintiffs filed the instant Motion to Enforce Subpoena for Consumer Records to Parris Law Firm (the “Motion”).

No Opposition has been filed.

II.  
Legal  
Standard

A deposition subpoena for business records directs a nonparty's ‘custodian of records’ to deliver a copy of the requested documents to a ‘deposition officer’ or to make the original documents available to the subpoenaing party for inspection and copying. ([Code Civ. Proc., §§ 2020.410(c), 2020.430(a)-(e)].) The Act refers to the custodian of records as the ‘deponent.’ ([Code Civ. Proc., §§2025.280(b), 2020.230(b)]). [¶] If a deponent fails to produce a requested document under his or her control, the subpoenaing party may bring a motion to compel production ‘no later than 60 days after the completion of the record of the deposition.’ ([Code Civ. Proc., § 2025.480(b)].)

(Unzipped Apparel, LLC v. Bader (2007) 156 Cal.App.4th 123, 127.) The objections or other responses to a business records subpoena are the “deposition record” for purposes of measuring the 60-day period for a motion to compel. (Id., at pp. 132-133.)

Code of Civil Procedure section 1987.1, subdivision (a) states:

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.

(Code

Civ. Proc., § 1987.1, subd. (a); see also *Lee v. Swansboro Country Property Owners Ass'n* (2007) 151 Cal.App.4th 575, 582-583.)

III.

Discussion

Plaintiffs move to enforce a subpoena for consumer records directed to Custodian of Records for Parris Law Firm, which was the firm representing the plaintiffs in the prior underlying action that gave rise to the instant suit. (Motion, pp. 1-2, Parvinian Decl., Exh. 1.) The underlying action pertains to Defendants' alleged inadequate representation of Plaintiffs' insureds in a separate matter wherein the opposing parties – the Equihuas – were represented by the Parris Law Firm. (Motion, Parvinian Decl., Exh. 1; Compl.)

In support of the Motion, Plaintiffs provide a copy of the subject subpoena and the documents sought by the subpoena from Parris Law Firm. (Motion, Parvinian Decl., Exh. 1.) Plaintiffs also provide a copy of the Parris Law Firm's objections to the subpoena served on Plaintiffs on December 5, 2025. (See Parvinian Decl., ¶ 6, Exh. 3, Proof of Service.) Further, Plaintiffs provide evidence that the parties stipulated to extend statutory discovery deadlines regarding the subpoena and its responses. (See Motion, Parvinian Decl.)

The subpoena served on the Parris Law Firm makes the following requests:

1. YOUR entire file RELATING TO YOUR legal representation of EQUIHUA in the UNDERLYING ACTION. YOU may exclude production of any materials containing attorney work-product, and/or any attorney-client privileged communications between YOUR office and EQUIHUA.
2. All of EQUIHUA's medical records which YOU were provided during the time YOU represented EQUIHUA in the UNDERLYING ACTION.
3. All of EQUIHUA's Employment Records which YOU were provided during the time YOU represented EQUIHUA in the UNDERLYING ACTION.
4. ALL pleadings in YOUR possession, custody or control filed in the UNDERLYING ACTION.
5. ALL discovery propounded by or on behalf of EQUIHUA in the UNDERLYING ACTION.
6. ALL responses to discovery issued by or on behalf of EQUIHUA in the UNDERLYING ACTION.
7. ALL DOCUMENTS produced by or on behalf of EQUIHUA in discovery in the UNDERLYING ACTION.
8. ALL DOCUMENTS produced by or on behalf of EQUIHUA in discovery in the UNDERLYING ACTION.
9. ALL transcripts of depositions taken in the UNDERLYING ACTION.
10. ALL transcripts of any trial proceedings in the UNDERLYING ACTION.
11. ALL transcripts of any hearing in the UNDERLYING ACTION.
12. ALL DOCUMENTS produced in response to any subpoena issued in the UNDERLYING ACTION.

13. ALL Court Orders in the UNDERLYING ACTION.

14. YOUR entire file RELATING TO YOUR legal representation of EQUIHUA in the Appeal of the UNDERLYING ACTION, including the California Court of Appeal, Second Appellate District Case No. B317331, and/or the California Supreme Court Case No. S283083. YOU may exclude production of any materials containing attorney work-product, and/or any attorney-client privileged communications between YOUR office and EQUIHUA.

15. ALL COMMUNICATIONS RELATED TO settlement of the UNDERLYING ACTION, including but not limited to demands and/or offers of settlement.

16. ALL COMMUNICATIONS with anyone at the Kinkle Rodiger & Spriggs, P.C. law firm, including but not limited to Scott Spriggs.

(Motion, Parvinian Decl., ¶ 4, Exh. 1, pp. 3-4.)

The Court acknowledges that the requests exclude certain materials from production based on the attorney work-product or attorney-client privilege. While Plaintiffs submit evidence of communication between Plaintiffs' counsel and the Parris Law Firm regarding the requests, potential agreement between Plaintiffs and Parris Law Firm to narrow the requests, and potential agreement between Plaintiffs and Parris Law Firm to draft a protective order regarding the requests, there is no opposition or proposed protective order filed by the Parris Law Firm. (See Motion, Parvinian Decl., ¶¶ 4-20, Exhs. 3-11.)

Based on foregoing, the Court GRANTS the Motion with the exclusion of materials from production based on the attorney work-product or attorney-client privilege. Nothing in this order prevents the parties from entering into a stipulated protective order pertaining to the documents requested.

IV.

Conclusion  
& Order

For the foregoing reasons,

Plaintiffs Allstate Northbrook Indemnity Company and Allstate Insurance Company's unopposed Motion to Enforce Subpoena for Consumer Records to Parris Law Firm is GRANTED with the exclusion of materials from production based on the attorney work-product or attorney-client privilege. Nothing in this order prevents the parties from entering into a stipulated protective order pertaining to the documents requested.

Moving parties are ordered  
to give notice.